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Executive Order

The Consular Regulations are hereby amended as follows:

Paragraph 518 is amended to read as follows:

518. *President to prescribe fees for official services.*—The President is authorized to prescribe from time to time the rates or tariffs of fees to be charged by consular officers for official services, and such rates or tariffs are required to be reported annually to Congress.—*R. S. 1745; 34 Stat. L. 101, Secs. 7, 8, 9.*

Paragraph 520 is amended to read as follows:

520. *American vessels not required to pay.*—By law no fees named in the tariff of consular fees prescribed by the President can be collected by consular officers from regularly documented American vessels and seamen for official services to them. Consular agents, however, who are compensated by fees, must furnish the masters of every such vessel with an itemized statement of such services performed on account of said vessel, with the fee so prescribed for each service, and also make a detailed report of such services and fees, under such regulations as the Secretary of State may prescribe, and they will be allowed such compensation for said services as they would have received prior to the passage of said law. Such services will not be compensated, unless they have been necessarily rendered.—*23 Stat. L. 56; 18 Op. Att. Gen. 111, 234.*

Paragraph 521 is canceled and the following substituted:

521. *Other services for which no fee is to be charged.*—Services required to be performed by consular officers for which no fee may be charged are as follows:

(a) *Passports for certain persons.* Consular officers are not permitted to make a charge for the issuance of passports to officers or employees of the United States proceeding abroad in the discharge of their official duties, or to members of their immediate families, or to seamen, or to widows, children, parents, brothers, and sisters of American soldiers, sailors, or marines, buried abroad whose journey is undertaken for the purpose and with the intent of visiting the graves of such soldiers, sailors, or marines, provided the facts are made a part of the application for the passport.—*41 Stat. L. 750.*

(b) *Visas of passports for foreign officials.* Consular officers are not permitted to make a charge for the execution of the application for a visa or for the visa of a passport for any officer of any foreign government, or members of his immediate family, its armed forces, or of any state, district, or municipality thereof, traveling to or through the United States.

(c) *Oaths, acknowledgments, and certificates of competency of local officials in connection with business with the government.* Consular officers are not permitted to make a charge for administering oaths required to be made by pensioners and their witnesses in executing their vouchers for their pensions (25 Stat. L. 782.), or by persons presenting claims for pensions or increase of pensions, or claims for insurance or insurance allowances or allotments in certifying to the competency of a local official before whom said papers were executed, or for other services in relation thereto; or for acknowledgments connected with the transfer of United

States bonds; or for any and all services in connection with the execution of income tax returns, including state and municipal returns.

Any services which American consular officers shall be called upon to perform under items 31, 33, 38, 39, 40, 42, and 43 of the Tariff of United States Consular Fees, for the use of any person in the collection of claims from the United States or from any State for compensation, pensions, back pay, bounty, bonus, or for property loss in the service of the United States shall be rendered free of charge.

(d) *Oaths and acknowledgments of officials and employees of the government in connection with government business.* Consular officers are not permitted to make a charge for administering oaths or taking acknowledgments of United States officials or employees of the United States government, or of any corporation in which the United States or its representatives shall own the entire outstanding capital stock, in connection with their official business or accounts.

(e) *Services for officials of foreign governments.* Consular officers are not permitted to make a charge for rendering notarial services to officials of foreign governments who render gratuitously reciprocal courtesies to American diplomatic and consular officers, or for certification of invoices of shipments of official supplies and equipment from foreign Governments to their diplomatic and consular officers and of shipments of personal effects to such officers in the United States when such foreign Government renders gratuitously reciprocal services to the United States Government.

(f) *Services for the government.* Consular officers are not permitted to make a charge for any and all services indicated in the Tariff of United States Consular Fees performed upon written orders of the Department of State for the official use of the government of the United States.

(g) *Services in connection with the settlement of estates of employees of the United States dying abroad.* Any services which American consular officers shall be called upon to perform under items 12, 31, 33, 38, 39, 40, 42, and 43 of the Tariff of United States Consular Fees shall be rendered free of charge when performed in connection with the settlement of the estate of any employee of the United States dying abroad while on official duty.

(h) *Affidavit of temporary stay of owner of seal skin garment.* No fee shall be charged for the affidavit of temporary stay of the owner of a seal skin garment entering the United States from Canada.

(i) *Bills of health for foreign war vessels.* Foreign war vessels are exempt from the payment of fees for bills of health.

(j) *Services in connection with the return of alien property.* Consular officers will take acknowledgments, administer oaths, certify to the official character of foreign officials and perform any other official service specified in the Tariff of United States Consular Fees which may be requested for the purpose of establishing the right to and obtaining the return of property held by the Alien Property Custodian without collecting fees therefor.

Paragraph 522 is amended to read as follows:

522. *No additional charges allowed.*—When a fee is fixed in the tariff of fees for any particular act or service, no additional fee is to be demanded for signature, attestation or affixing the seal of office; nor may any subordinate in the consulate charge a fee for any assistance rendered by him in connection with any service performed by the principal officer and for which the latter has charged a fee.

In regard to the verification of invoices, a penalty is provided for charging for blank forms, advice, or for clerical services in the preparation of the declaration or certificate, or for receiving any fee greater than that authorized by law; and if a consular officer collects or knowingly allows to be collected any other or greater fees than are allowed by law for any service, he is liable in treble the amount of

the unlawful charge (plus the costs of recovery) besides the liability to refund it. In such case the Secretary of the Treasury is authorized to retain the amount of the overcharge out of the compensation of the consular officer.—*R. S. Secs. 1716, 1723.* Provision has been made by law for the refundment at the Treasury of fees and charges erroneously collected by consular officers from the regularly documented vessels of the United States when the claim shall have been made within one year from the date of collection.—*23 Stat. L. 59, Sec. 26.*

Paragraph 523 is amended to read as follows:

523. *Consul liable for fees not collected.*—If a consular officer omits to collect any fees which he is required to collect for a service, he is liable to the United States therefor as if he had collected them, unless they shall be remitted, on good cause shown, by the Secretary of the Treasury. Receipts must be furnished by all consular officers to owners, agents, consignees, masters, or commanders of all vessels from whom fees or charges or extra wages or arrears of wages of seamen shall be collected.—*R. S. Secs. 1724, 4213.*

Paragraph 524 is amended to read as follow:

524. *Tonnage and other fees charged against the Treasury.*—The tonnage fees provided for in fees 16 and 17 of the Tariff of the United States Consular Fees are not charged by consular officers against regularly documented American vessels and are not charged by consular agents against the Treasury for such vessels running regularly, making weekly or monthly trips, or otherwise, to or between foreign ports, for more than four trips in a year. These fees are chargeable, however, by consular agents against the Treasury for each vessel on the first four trips in each calendar year. They are chargeable at the foreign port where the principal offices of the steamship company or owners are located, but are not to be charged at other consular offices on the route, whether within or without the same allegiance.

Consular fees other than tonnage fees are charged by consular agents against the Treasury for all services performed for regularly documented American vessels; and when a vessel makes a special trip to a foreign port other than that to which it runs on its regular trips, a consular agent at the port thus visited is entitled to receive tonnage fees for the special trip.—*R. S. Sec. 1720; 1 Comp. Dec. 374.*

Paragraph 526 is canceled.

Paragraph 527 is amended to read as follows:

527. *Fees to be paid in the coin of the United States or its equivalent.*—All consular fees collected by consular officers for and in behalf of the United States shall be collected in the coin of the United States or at its representative value in exchange.—*R. S. 1746.* They are to be collected when the services for which they are due are performed and a consular officer is not authorized to give credit for their payment.

Paragraph 528 is amended to read as follows:

528. *Currency tables.*—Tables showing the value of foreign coin as expressed in the money of account of the United States are prepared quarterly by the Director of the Mint and proclaimed by the Secretary of the Treasury.—*28 Stat. L. 552; 42 Stat. L. 858.*

Paragraph 529 is amended to read as follows:

529. *Receipts.*—A receipt must be given when demanded for any fee which a consular officer collects, describing the service for which it is received and giving the serial number of the fee.

Paragraph 530 is canceled and the following substituted therefor:

530. *Numbering and recording fees.*—Consular fees must be numbered and recorded fully and clearly in the record of fees p ided for the purpose by the Department of State.

For convenience fees are numbered in three groups, each group beginning with number 1 at the commencement of each calendar year and continuing consecutively throughout the year.

Fees for the certification of consular invoices constitute the first group, and must be numbered in a separate consecutive series of numbers, corresponding numbers being placed on the invoices or certificates.

Fees for landing certificates constitute the second group, and must be numbered consecutively in a separate series, corresponding numbers being placed on the certificates at the point indicated, or just beneath the fee stamp.

All other fees collected constitute the third group, and must be numbered consecutively in a separate series, corresponding numbers being placed on the documents at the point indicated, or just beneath the fee stamp.

Paragraph 531 is canceled and the following substituted therefor:

531. *Return of fees.*—Every consular officer in charge of an office shall, at the close of each quarter or fractional part of a quarter during which he has been in charge, make a return of all fees collected by him during such period, which return shall be a full and perfect transcript of the record of fees which he is required to keep. These returns must be rendered on the prescribed forms. If no fees are collected in any period for which return is to be made that fact should be reported on the prescribed form. The statute declares a consular officer guilty of embezzlement, and disqualifies him from holding any office of trust or profit under the United States, who wilfully neglects to render true and just quarterly accounts and returns of the business of his office, and of moneys received by him for the use of the United States, or who neglects to pay over any balance of such moneys due to the United States at the expiration of any quarter before the expiration of the next succeeding quarter.—*R. S. Sec. 1734.*

Paragraph 532 is canceled and the following substituted therefor:

532. *Oath to return of fees.*—Every consular officer shall make oath to the return of fees collected by him in which he shall swear that it is a full and perfect transcript of the record of fees which he is by law required to keep; that the same is true and correct and contains a full and accurate statement of all fees received by him as such consular officer during the period of time therein mentioned. This oath may be taken before any person having authority to administer oaths at the post or place where the consular officer is located. When no fees have been collected the form on which the return is made must, nevertheless, be sworn to.

Paragraph 533 is amended to read as follows:

533. *Tariff of United States Consular Fees.*—The Tariff of United States Consular Fees prescribed by the President under authority of Section 1745 of the Revised Statutes as amended by the Acts of April 5, 1906, and June 4, 1920, to be charged by consular officers for official services, is supplied to all consular offices by the Department. All charges for such services must be in strict accordance with this tariff, and be collected in the coin of the United States or at its representative value in exchange. No fee or compensation will be collected for any service not covered by this tariff.

TARIFF OF UNITED STATES CONSULAR FEES

(The fees in this tariff are not prescribed for American vessels and seamen, because they are exempted by law from the payment of consular fees. Consular agents will make the fees in this tariff a basis of collection from the Treasury for services to such vessels. Foreign-built vessels, unregistered, owned by American citizens, and vessels documented under the laws of the Philippine Islands are not exempt from the payment of the fees prescribed herein.)

Nature of service	Fee
Miscellaneous services	
1. Certificate to invoice, including declaration, in triplicate or quadruplicate, covering either importations or transit shipments, including any additional declaration or certificate not otherwise provided for which is required by law or regulations for use in connection with the entry of the wares or the forwarding of the same in bond*	$2.50
2. Invoice of returned American goods	1.00
3. Discontinued.	
4. Certificate to extra copies of invoices, each	1.00
5. Certificate of disinfection, in triplicate or quadruplicate	2.50
6. Landing certificate, including oaths of master and mate, and the complete execution of the certificate	2.50
7. Sealing cars coming from Canada or Mexico, for each manifest in quintuplicate with the consul's certificate including sealing of each car, vessel, bale, barrel, box, or package	1.00
8. Executing passport application in every case (no exceptions)	1.00
Issuing passport Form No. 9	9.00
Exceptions—	
(a) Officers or employees of United States traveling on official business or members of their immediate families	No fee
(b) Seamen	No fee
(c) Widows, children, parents, brothers, and sisters of American soldiers, sailors, or marines buried abroad, whose journey is for purpose of visiting graves of such soldiers, sailors, or marines (affidavit of such purpose must accompany application)	No fee
Extension of passport	No fee
Verifying an American passport—Form No. 10	No fee
9. Visa services for aliens:	
Preparing and acknowledging declaration or application for passport or immigration visa, except where reciprocal agreements for other fees have been made	$1.00
Issuing passport visa or immigration visa, except where reciprocal agreements for other fees have been made	$9.00
Exceptions:	
(a) Any officer of any foreign Government or members of his immediate family	No fee
(b) Any officer of the armed forces of any Government or members of his immediate family	No fee
(c) Any officer of any state, district, or municipality of any foreign Government or members of his immediate family	No fee
(d) Any alien soldier who was a resident of the United States, and who having served in the military or naval forces of any country cobelligerent with the United States or in the Czechoslovak, Polish, or other independent forces attached to the armed forces of the United States or its cobelligerent nations, who is entitled to reentry into the United States under public resolution of October 19, 1918 (See Circular No. 650 of Jan. 17, 1919)	No fee
Certifying to a copy of visa declarations or application previously taken	$1.00
10. Visaing a Chinese passport or certificate. (Except no fee for persons included in a, b, and c, of Fee No. 9)	9.00
11. Marriage certificate, in duplicate, Form No. 87	1.00
12.*For taking into possession the personal estate of any citizen who shall die within the limits of a consulate, inventorying, selling, and finally settling and preparing or transmitting, according to law, the balance due thereon, $2 for each $100 of value or fraction thereof. If part of such estate shall be delivered over before final settlement $1 for each $100 of value or fraction thereof to be charged on the part so delivered over as is not in money, and $2 for each $100 of value or fraction thereof on the gross amount of the residue. If among the effects of the deceased are found certificates of foreign stock, loans, or other property, $1 for each $100 of value or fraction thereof on the amount thereof. No charge will be made for placing the official seal upon the personal property or effects of such deceased citizen, or for breaking or removing the seals.	
13. For each certificate of protection, semsar, or certificate of employment issued at Tangier	2.00

*See Item 37

Nature of service	Fee
Services to vessels and seamen	
14. Bill of health, in duplicate (Foreign war vessels are exempt from payment of fees for bills of health.)	$5.00
15. Discontinued.	
16. For receiving and delivering ship's register and papers, including consular certificates, as prescribed in Forms Nos. 13 and 14, $1 for each 100 tons or fraction thereof, registered measurement (net), of the vessel for which the service is performed, if under 1,000 tons; but for American vessels running regularly by weekly or monthly trips, or otherwise, to or between foreign ports, this tonnage fee will not be charged for more than four trips in a year; and tonnage fees shall not be exacted for any vessel touching at or near ports in Canada on her regular voyage from one port to another within the United States, unless some official service required by law shall be performed.	
17. And for every additional 100 tons net or fraction thereof	.50
18. Shipping or discharging seamen, including the certificates thereof attached to crew list and shipping articles and given to seamen	2.00
19. Authentication of copies of protests or other necessary documents for vessels or seamen not otherwise provided for	2.00
20.† Preparation and acknowledgment for vessels or seamen of any oath or declaration for which a form is given in the Consular Regulations, or a similar necessary service not otherwise provided for	2.00
21. Preparation and execution for vessels or seamen of any certificate for which a form is given in the Consular Regulations, or similar necessary service not otherwise provided for	2.00
22. Orders or letters for vessels or seamen for which forms are given in the Consular Regulations, or other similar necessary service not otherwise provided for	2.00
23. Recording, when necessary, for vessels or seamen any document covered by the provisions of the Consular Regulations, for every 100 words or fraction thereof	.50
24. Noting marine protest—Form No. 37	2.00
25. Extending marine protest—Form No. 38	3.00
If it exceeds 200 words, for every additional 100 words	.50
26. Protest of master against charterers or freighters—Form No. 39	2.00
27. Clearance when issued by the consul, as at free ports	2.00
28. Attending an appraisement of vessel's goods or effects, for each day's attendance	5.00
29. Attending sale of vessel's goods, for each day's attendance during which the sale continues	5.00
30. Attendance at a shipwreck, or for the purpose of assisting a ship in distress, or of saving wrecked goods or property, over and above traveling expenses, whenever the consul's interposition is required by the parties interested, for each day	5.00
Notarial and other services	
31.*Administering an oath and certificate thereof††	2.00
32. Administering oath and preparing passport application††	1.00
33.*Acknowledgment of a deed or power of attorney, or similar service, including one or more signatures, with certificate thereof, for each copy	2.00
34. Administering any and all oaths required to be made by pensioners and their witnesses in the execution of their pension vouchers, or by persons presenting claims for pensions or increase of pensions, or claims for insurance or insurance allowances or allotments or certifying to the competency of a local official before whom said papers were executed, or for other services in relation thereto	No fee
35. Acknowledgments connected with the transfer of United States bonds	No fee
36. Administering oaths or taking acknowledgments of officials or employees of the United States Government, or of any corporation in which the United States or its representatives shall own the entire outstanding capital stock, in connection with their official business accounts	No fee
37. For rendering notarial services to officials of foreign Governments who render gratuitously reciprocal courtesies to American diplomatic and consular officers, or for certification of invoices of shipments of official supplies and equipment from foreign Governments to their diplomatic and consular officers and of shipments of personal effects to such officers in the United States when such foreign Government renders gratuitously reciprocal services to the United States Government	No fee

Nature of service	Fee
Notarial and other services—Continued	
38.*Certifying to official character of a foreign notary or other official	$2.00
39.*For taking depositions, executing commissions or letters rogatory, where the record of testimony including caption and certificate, does not exceed 500 words	10.00
For each additional 100 words or fraction thereof	.50
The foregoing fee shall cover the administration of the oath and all services of the consul as commissioner, but shall not include services of clerk, stenographer, or typewriter, which shall be additional at the rate prescribed herein for copying.	
40.*Copies (carbon copies to be charged for at the same rate as originals):	
For the first 100 words or fraction	.50
For every additional 100 words or less	.25
41. Discontinued.	
42.*Additional fee for all services contemplated by fees numbered 31, 32, 33, 38, 39, when rendered elsewhere than at the consular office at the request of the interested parties, for each hour or fraction thereof	1.00
In connection with any service rendered outside of the consular office at the request of private individuals, the exact amount of the expenses actually and necessarily incurred by the person rendering the service shall be collected from the persons for whom the service is performed in addition to the fee or fees prescribed therefor, and a note of the amount shall be made on the margin of the fee book and fee return opposite the entry of the service and fee; but no amount in excess of the fee or fees prescribed and such actual and necessary expenses shall be charged or accepted.	
43.*Recording unofficial documents in consulate upon request:	
For the first 100 words or fraction	.50
For every additional 100 words or less	.25
44. Any and all services indicated in the tariff of fees and performed upon written orders of the Department of State for the official use of the Government of the United States	No fee
45. Any and all services in connection with the execution of income-tax returns, federal, state and municipal	No fee
46. License for the practice of pharmacy and the sale of poisons in the consular districts of the United States in China	2.00
47. Certificate of Registration	1.00
48. Presenting a bill of exchange or other negotiable instrument for acceptance, payment, or protest, for each hour or fraction thereof outside of the consular office	1.00
49. Noting and certifying to protest of a bill of exchange or other negotiable instrument and giving notice thereof to drawer and indorsers when requested to do so	2.00
50. Affidavit of temporary stay of owner of sealskin garment entering the United States from Canada	No fee

*Services performed under items 12, 31, 33, 38, 39, 40, 42, and 43 of the foregoing tariff shall be rendered free of charge when performed in connection with the settlement of the estate of any employee of the United States dying abroad while on official duty, and services performed under items 31, 33, 38, 39, 40, 42, and 43 shall be rendered free of charge when performed for the use of any person in the collection of claims from the United States or from any State for compensation, pensions, back pay, bounty, bonus, property loss in the service of the United States, or for obtaining the return of property held by the Alien Property Custodian.

†Covers service of visa of alien crew list for foreign ship.

††Executing an affidavit in regard to American birth in connection with application for passport or for registration, no fees.

Consular officers must require all fees to be paid in advance and before the stamps are canceled, except in case of attendance out of office or of commissions, when the amount can not be determined until the service is performed. Advance deposits to cover fees in such latter cases may be accepted, but in no other cases.

CALVIN COOLIDGE

THE WHITE HOUSE,
June 28, 1926.

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GOVERNMENT PRINTING OFFICE